

VCU326251 SINITSA, STAN vs. CUSO FINANCIAL SERVICES, LP

County: tulare

Division: Civil Law and Motion

Department: 1

Hearing date: 2026-06-25

Motion: Continued Motion for Preliminary Approval of Class Action and PAGA Settlement

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Re: SINITSA, STAN vs. CUSO FINANCIAL SERVICES, LP

Case No.: VCU326251

Date: June 25, 2026

Time: 8:30 A.M.

Dept. 1-The Honorable David C. Mathias

Motion: Continued Motion for Preliminary Approval of Class Action and PAGA Settlement

Tentative Ruling: To grant the motion, as modified below; to set the motion for final approval for February 18, 2026; 8:30 am; D1.

Background

The Court previously continued this motion and ordered a supplemental declaration to be filed as to the information to calculate the lodestar, the presently incurred costs of counsel, the administrative cost estimate and the length of the notice period.

On June 17, 2026, Plaintiff filed a supplemental declaration addressing these issues.

Class Notice

The settlement agreement provides no claim form will be required of class members to participate in distributions. Only those wishing to object or opt out must file notice with the settlement administrator.

Objections or opt out notices are now to be made within 60 days. The Court regularly approves notice periods of 60 days or longer.

The class notice period is therefore approved.

Attorneys' Fees and Costs

Attorneys' fees no greater than of 33.3% of the gross settlement fund of \$1,750,000 or \$583,333.33 are sought in this matter.

Counsel has utilized the percentage of common fund methodology as well as provided adequate lodestar information to evaluate the reasonableness of the fee request.

Here, counsel indicates that the firms, collectively, have spent 401.5 hours at rates ranging from \$900 to \$200 per hour, resulting in a base lodestar of \$337,640. (Joint Declaration ¶4.)

To award the \$583,333.33 sought in fees, the Court would need to apply a multiplier of 1.73.

The Court permits a maximum lodestar multiple of 1.5 in these cases. The Court has reviewed the declarations of counsel in support of what is now an additional .16 multiplier, but, in its discretion, rules that the additional .5 awarded adequately takes into account the quality of the representation, the novelty and complexity of the issues, the results obtained, and the contingent risk presented. (See *In re Vitamin Cases* (2003) 110 Cal.App.4th 1041, 1052 quoting *Thayer v. Wells Fargo Bank* (2001) 92 Cal.App.4th 819, 833) Despite any agreement by the parties to the contrary, the Court has an independent responsibility to review the attorney fee provision of the settlement agreement and award an amount that it determines to be reasonable. (*Garabedian v. Los Angeles Cellular Telephone Co.* (2004) 118 Cal.App.4th 123, 128.)

Therefore, the Court will preliminarily approve \$506,460 in fees, equal to 1.5 times the current lodestar.

The Court notes that it will permit a declaration providing actual expended additional hours between preliminary approval and final approval as to any increase in this approved fee amount.

As to presently incurred costs, counsel jointly indicates that \$11,346.81 have been incurred. Therefore, the Court preliminarily approves costs not to exceed \$20,000.

Claims Administrator

The Court preliminarily approved Analytics LLC as the claims administrator for this class action and the supplemental joint declaration indicates a cost estimate of \$73,826. The Court approves the cost associated with the administration of this claim.

Therefore, as modified above, the Court grants the motion for preliminary approval and Plaintiff's deductions from the gross settlement of \$1,750,000 are preliminarily approved as follows:

Preliminarily Approved Attorneys' Fees (1.5 Lodestar):

\$506,460

Preliminarily Approved Costs (up to):

\$20,000

Preliminarily Approved Enhancement Payment to Plaintiff:

\$5,000

Preliminarily Approved Settlement Administrator Costs

\$73,826

Preliminarily Approved Net Settlement Amount

\$1,144,714

Therefore, the Court sets the motion for final approval for February 18, 2026; 8:30 am; D1.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.